

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

X

BRIANS RICHARDS

Plaintiff,

-against-

Index No:
Summons

**THE CITY OF NEW YORK, POLICE COMMISSIONER
RAYMOND KELLY, POLICE OFFICER ESTHER
- Tax Registry #: 937175,
And John and/or JANE DOE NUMBERS 1-10**

Defendants.

X

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve the plaintiff a copy of your answer, or, if the complaint is served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within twenty (20) days after service, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer the Plaintiff's complaint, judgment will be taken against you by default for the relief demanded therein.

Plaintiff designates Bronx County as the place of venue based on where the incident occurred and Plaintiff's residence.

Dated: New York, NY 10007
October 31, 2012



Ronald Paul Hart, Esq.
Attorney for the PLAINTIFF
225 Broadway, Suite 2515
New York, NY 10007
Tel: (212) 766-1443

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

BRIAN RICHARD

Plaintiff, .

-against-

Index No:
VERIFIED
COMPLAINT

**THE CITY OF NEW YORK, POLICE COMMISSIONER
RAYMOND KELLY, POLICE OFFICER ESTHER
- Tax Registry #: 937175, and John and/or
JANE DOE NUMBERS 1-10**

Defendants.
_____X

NOW COMES the Plaintiff, **BRIAN RICHARD**, by and through his attorney,
RONALD PAUL HART, P.C., as and for his complaint against the Defendants, and
respectfully shows to this Honorable Court and allege as follows:

PARTIES:

1) That the Plaintiff, **BRIAN RICHARD** (Hereinafter "Plaintiff") is presently a
resident of the Bronx County in the State of New York.

2) Upon information and belief, that at all times, hereinafter mentioned, the
Defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.

3) Upon information and belief, Police Officer Esther-Tax Registry 937175 was and is a
police officer employed by the New York City Police Department.

4) That at the time of the incident, Police Officer Esther was acting under the directives of his or her superiors who ordered him or her to finish the arrest after said superiors unlawfully assaulted Plaintiff.

5) That at all time hereinafter mentioned, Police officer Esther together with his or her superiors acted under color of state law and were in the performance of their duties as police officers.

6) Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, its agents, servants and employees operated, maintained and controlled the Police Department of The City of New York, and all the police officers thereof, including defendant Police Officers **JOHN/JANE DOES 1-10**.

7) Upon information and belief, at all times hereinafter mentioned, and on or prior to March 13th, 2012, Defendants, Police Officers **JOHN/JANE DOES 1-10**, were employed by That Raymond Kelly who is the Police Commission of the New York City Police Department and as such issues policies, procedures, and protocols followed by his officers.

8) That upon information and belief, Police Commissioner Kelly has allowed to stand and openly advocates a policy and custom of condoning, allowing, and turning a blind eye to NYPD police officers who violate the law by permitting widespread illegal stops, frisks, and searches of minority citizens known as “stop and frisk” on the street which has led to many false arrests and imprisonment of minorities without just cause therefore.

9) That Police Commissioner Kelly’s policies and procedures have emboldened the police to attack, assault and improperly imprison citizens without probable cause.

10) That said policy and custom as followed caused the police herein to illegally and improperly stop the plaintiff who was not involved in any illegal activity by virtue of the fact that he was near the vicinity of a fight.

11) Said illegal policy and procedure also caused the police to herein to assault the Plaintiff herein by breaking his jaw and then cover up their illegal activity by issuing Plaintiff a bogus summons for disorderly conduct that any reasonable police officer knew or in the exercise of due care would know was defective and improper.

12) This action arises both under the United States and New York Constitutions, particularly under provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States, and under federal law, particularly the Civil Rights Acts, Title 42 of the United Code, Section 1981, 1983, 1985 et seq., and state law for false arrest/false imprisonment, malicious prosecution, excessive force, assault, abuse of process, negligent infliction of emotional distress, negligent hiring, training, and supervision of police officers, permitting unlawful police practices, and racial discrimination, to name a few of the wrongs committed against this Plaintiff by various members of the NYPD.

13) This action also arises under and the rights under the Constitution and laws of the State of New York.

14) Each and all of the acts of the Defendants alleged herein were done by the defendants, their agents, servants and employees, and each of them, as individuals and in their official capacities as police officers under the color and pretense state law, the statutes, ordinances, regulations, customs and usages of the State of New York, the **CITY OF NEW YORK** and the County of Bronx under the authority of their office as police officers of said State, City and County.

15) The amount in controversy is \$75,000 exclusive interest.

PENDANT STATE CLAIMS:

16) That Plaintiff's Notice of Plaintiff's Claim for Damages for False arrest, False Imprisonment, Racial Discrimination, abuse of process, Assault and Battery, Excessive force, violation of Civil rights, negligence in hiring and retaining, negligence in performance and negligence in training and supervising, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller Defendant **THE CITY OF NEW YORK** on the 1st day of June 2012.

17) That more than 30 days have elapsed since the Notice of Claim has been served upon Defendants **CITY OF NEW YORK** and other defendants and said Defendants have neglected to or refused to make any adjustments or payment thereof; hence, this action is commenced within one year and 90 days after the cause of action arose which was March 13 2012.

AS AND FOR FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRIAN RICHARD
FALSE ARREST AND FALSE IMPRISONMENT:

18) The Plaintiff, **BRIAN RICHARDS**, hereby incorporates by reference each and every preceding paragraph 1-18 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

19) That on or about March 13th, 2012, Plaintiff, **BRIAN RICHARD** (Hereinafter "Plaintiff") was in a park on 216th Street and Barnes Avenue in Bronx County.

20) Plaintiff, a high school student, was simply playing basketball with a group of friends when a fight broke out in the park.

21) Mr. Richard was not involved with this fight in any way which was on the opposite side of the basketball court. In fact, when the fight broke out, Plaintiff and his friends exited the park.

22) Police from Precinct 47th arrived at the park to handle the fight; however, the situation began to spiral out of control.

23) Mr. Richard along with his friends after observing the situation spiral out of control began to leave the park.

24) As he was leaving the park, Mr. Richard was approached by four mainly white police officers and they began without provocation or any explanation to beat him up.

25) One officer without explanation kned Plaintiff in the mouth causing his *jaw to break*.

26) The police who assaulted the Plaintiff without his permission and improperly manhandled him by taking him to the hospital, then took him to the precinct and gave him a bogus disorderly conduct ticket as a cover-up for their criminal assault of breaking the jaw of this young teenage boy.

27) This unpermitted assault upon the Plaintiff was not done without his consent and was completely unjustified.

28) When Plaintiff was released from the precinct, he went straight to the hospital because he was in so much pain from his broken jaw.

29) Upon admission to the hospital, Plaintiff was told he would have to stay overnight at Our Lady of Mercy Hospital on 223rd and Carpenter Avenue in Bronx County.

30) The next morning, Plaintiff was transferred to Montefiore Hospital where he had emergency dental surgery to fix and repair his broken jaw and mandible.

31) The doctors placed two metal plates into Plaintiff's jaw and then stitched him up.

32) On May 25th, 2012, Plaintiff went to Court ready to defend himself against the bogus summons but the Judge dismissed it because it was blatantly defective ticket and by no means made out the claim of Disorderly Conduct.

33) That the Defendants, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the widespread behavior of the members of the NYPD who believe they can assault attack citizens with impunity in the performance of their duties because Police Commissioner Raymond Kelly permits, condones and turns a blind eye to the wide spread abuse of the stop frisk, search and assaultive policies of the NYPD.

34) That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in their exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act willfully, wantonly, maliciously, unlawfully, negligently, recklessly and improperly in their treatment of the Plaintiff.

35) That the Defendant, **THE CITY OF NEW YORK**, was careless and reckless in hiring and retaining as and for its employees, the above named individuals **DEFENDANTS** Police Officer Esther and Police Officers **JOHN/JANE DOES 1-10**, in that the said Defendants lacked the experience deportment and ability to be employed by the Defendant; in that the Defendant failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employee who lacked the mental capacity and the ability to function as an employee of the aforementioned Defendant; in that Defendant's background and in that they hired and retained as an employee of their police department individuals whose backgrounds

contained information (based information and belief) that revealed said Defendants lacked the maturity, sensibility and intelligence to be employed by the Defendant; in that the Defendants knew of the lack of ability, experience, deportment and maturity of said Defendant employee when they hired him to be an employee; and, in that the Defendants their agents, servants and employees were otherwise careless, negligent and reckless.

36) That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the Defendants, their agents, servants, and employees without any negligence on the part of Plaintiff.

37) That the acts of the Defendants, their agents, servants and employees in failing to properly discipline, hire and train their employees, agents and servants presents a clear and present danger to the citizens of the City and State of New York.

38) That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered sick, sore, lame and so remains by the actions of the Defendants, their agents, servants and employees. Plaintiff recently had his criminal case dismissed on May 25th 2012.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRIAN RICHARD
NEGLIGENCE IN TRAINING AND SUPERVISING:

39) The Plaintiff, **BRIAN RICHARD**, hereby incorporates by reference each and every preceding paragraph 1-38 of this Summons and Complaint as though fully pleaded and alleged in their entirety below.

40) That on or about March 13th, 2012, Plaintiff, **BRIAN RICHARDS** (Hereinafter "Plaintiff") was in a park on 216th Street and Barnes Avenue in Bronx County.

41) Plaintiff was playing basketball with a group of friends. A fight broke out in the park; Mr. Richards was not involved with the fight which was on the opposite side of the basketball court. Police from precinct 47th arrived at the park to handle the fight; however, the situation began to spiral out of control.

42) Mr. Richards along with his friends after observing the situation began to leave the park. As he was leaving the park, Mr. Richards was approached by four police officers and they began without provocation or any explanation to beat him up.

43) One officer kneed him in the mouth causing his jaw to break.

44) The police then took him down to the precinct and gave him a bogus disorderly conduct ticket as a cover for their misconduct and unprofessionalism.

45) When he was released from the precinct five minutes later, he went straight to the hospital. Mr. Richards stayed overnight at Our Lady of Mercy Hospital 223rd and Carpenter Avenue.

46) The next morning, he was transferred to Montefiore Hospital where he had surgery to correct his broken jaw. The doctors placed two plates into his jaw and then stitched him up.

47) On May 25th, 2012 his case was dismissed by the judge as a blatantly defective ticket.

48) That the Defendant, **THE CITY OF NEW YORK**, their agents, servants, and employees, carelessly and recklessly failed to properly train and supervise their employees, in particular, the employees named Defendants Police officers **JOHN/JANE DOES 1-10** in that they failed to train their employees to control their tempers and exercise the proper deportment and temperament; and to otherwise act as reasonable, prudent police officers; failed to give them proper instruction as to their deportment, behavior, and conduct as representatives of their

employers; and, in that the Defendants, their agents, servants and employees were otherwise reckless, careless and negligent.

49) That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body there from were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and employees without any negligence on the part of the Plaintiff.

50) That by reason of the aforesaid, the Plaintiff was injured in Mind and Body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRIAN RICHARD
NEGLIGENCE IN PERFORMANCE OF DUTIES:

51) The Plaintiff, **BRIAN RICHARD**, hereby incorporates by reference each and every preceding paragraph 1-50 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

52) That on or about March 13th, 2012, Plaintiff, **BRIANS RICHARDS** (Hereinafter "Plaintiff") was in a park on 216th Street and Barnes Avenue in Bronx County.

53) Plaintiff was playing basketball with a group of friends. A fight broke out in the park; Mr. Richards was not involved with the fight which was on the opposite side of the basketball court. Police from precinct 47th arrived at the park to handle the fight; however, the situation began to spiral out of control.

54) Mr. Richards along with his friends after observing the situation began to leave the park. As he was leaving the park, Mr. Richards was approached by four police officers and they began without provocation or any explanation to beat him up.

55) One officer kneed him in the mouth causing his jaw to break.

56) The police then took him down to the precinct and gave him a bogus disorderly conduct ticket as a cover for their misconduct and unprofessionalism.

57) When he was released from the precinct five minutes later, he went straight to the hospital. Mr. Richards stayed overnight at Our Lady of Mercy Hospital 223rd and Carpenter Avenue.

58) The next morning, he was transferred to Montefiore Hospital where he had surgery to correct his broken jaw. The doctors placed two plates into his jaw and then stitched him up.

59) On May 25th, 2012 his case was dismissed by the judge as a blatantly defective ticket.

60) That the Defendants, its agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that they carelessly, recklessly and negligently arrested the Plaintiff without making a proper investigation; in that they were negligent, careless and reckless in the manner in which they operated, controlled and maintained their agents, servants, and employees; and in that the Defendants, their agents, employees and servants were otherwise negligent, careless, and reckless.

61) That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body these from, were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and employees without any negligence on the part of the Plaintiff.

62) That by reason of the aforesaid, the Plaintiff was injured in Mind and Body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRIAN RICHARD
FOR MALICIOUS PROSECUTION:

63) The Plaintiff, **BRIAN RICHARD**, hereby incorporates by reference each and every preceding paragraph 1-62 of this Summons and Complaint as though fully plead and alleged in their entirety below.

64) That on or about March 13th, 2012, Plaintiff, **BRIAN RICHARDS** (Hereinafter "Plaintiff") was in a park on 216th Street and Barnes Avenue in Bronx County.

65) Plaintiff was playing basketball with a group of friends. A fight broke out in the park; Mr. Richards was not involved with the fight which was on the opposite side of the basketball court. Police from precinct 47th arrived at the park to handle the fight; however, the situation began to spiral out of control.

66) Mr. Richards along with his friends after observing the situation began to leave the park. As he was leaving the park, Mr. Richards was approached by four police officers and they began without provocation or any explanation to beat him up.

67) One officer kneed him in the mouth causing his jaw to break.

68) The police then took him down to the precinct and gave him a bogus disorderly conduct ticket as a cover for their misconduct and unprofessionalism.

69) When he was released from the precinct five minutes later, he went straight to the hospital. Mr. Richards stayed overnight at Our Lady of Mercy Hospital 223rd and Carpenter Avenue.

70) The next morning, he was transferred to Montefiore Hospital where he had surgery to correct his broken jaw. The doctors placed two plates into his jaw and then stitched him up.

71) On May 25th, 2012 his case was dismissed by the judge as a blatantly defective ticket.

72) That by reason of the aforesaid unlawful and malicious prosecution and criminal charges and hearings, the Plaintiff was deprived of his liberty was subjected to great indignity, pain, humiliation, and great distress of mind and body and was help up to scorn and ridicule, was injured in character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said Plaintiff has been otherwise damaged.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRIAN RICHARD
FOR NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS:

73) The Plaintiff, **BRIAN RICHARD**, hereby incorporates by reference each and every preceding paragraph 1-72 of this Complaint as though fully plead and re-alleged in their entirety below.

74) That on or about March 13th, 2012, Plaintiff, **BRIANS RICHARDS** (Hereinafter "Plaintiff") was in a park on 216th Street and Barnes Avenue in Bronx County.

75) Plaintiff was playing basketball with a group of friends. A fight broke out in the park; Mr. Richards was not involved with the fight which was on the opposite side of the basketball court. Police from precinct 47th arrived at the park to handle the fight; however, the situation began to spiral out of control.

76) Mr. Richards along with his friends after observing the situation began to leave the park. As he was leaving the park, Mr. Richards was approached by four white police officers and they began without provocation or any explanation to beat him up, breaking his jaw.

77) One officer kneed him in the mouth which caused his jaw to break.

78) The police then took him down to the precinct and gave him a bogus disorderly conduct ticket as a cover for their misconduct, unprofessionalism, and criminal assault upon.

79) When he was released from the precinct, he went straight to the hospital. Mr. Richards stayed overnight at Our Lady of Mercy Hospital 223rd and Carpenter Avenue.

80) The next morning, he was transferred to Montefiore Hospital where he had surgery to correct his broken jaw. The doctors placed two plates into his jaw and then stitched him up.

81) On May 25th, 2012 his case was dismissed by the judge as a blatantly defective ticket.

82) That Defendants conduct was so outrageous that it went well beyond the bound of decency and civility that is expected in our civilized society that it shock the conscious of the reasonable person.

83) No law abiding citizen and teenager would expect that in his effort to obey the law by leaving the area where a fight was in progress that white police officers would simply knee him in the mouth without asking or inquiring if he was involved in the fight and where he did not attempt to assault the police.

84) Plaintiff demands punitive damages to deter like minded individuals from similar conduct.

85) That due to defendants' outrageous conduct, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRIAN RICHARD
FOR INTENTIONAL INFLECTION OF EMOTIONAL DISTRESS:

86) The Plaintiff, **BRIAN RICHARD**, hereby incorporates by reference each and every preceding paragraph 1-85 of this Summons and Complaint as though fully plead and alleged in their entirety below.

87) That on or about March 13th, 2012, Plaintiff, **BRIAN RICHARDS** (Hereinafter "Plaintiff") was in a park on 216th Street and Barnes Avenue in Bronx County.

88) Plaintiff was playing basketball with a group of friends. A fight broke out in the park; Mr. Richards was not involved with the fight which was on the opposite side of the basketball court. Police from precinct 47th arrived at the park to handle the fight; however, the situation began to spiral out of control.

89) Mr. Richards along with his friends after observing the situation began to leave the park. As he was leaving the park, Mr. Richards was approached by four police officers and they began without provocation or any explanation to beat him up.

90) One officer kned him in the mouth causing his jaw to break.

91) The police then took him down to the precinct and gave him a bogus disorderly conduct ticket as a cover for their misconduct and unprofessionalism.

92) When he was released from the precinct five minutes later, he went straight to the hospital. Mr. Richards stayed overnight at Our Lady of Mercy Hospital 223rd and Carpenter Avenue.

93) The next morning, he was transferred to Montefiore Hospital where he had surgery to correct his broken jaw. The doctors placed two plates into his jaw and then stitched him up.

94) On May 25th, 2012 his case was dismissed by the judge as a blatantly defective ticket.

95) That due to Defendants' outrageous conduct, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, by the actions of the Defendants.

96) That Defendants conduct was so outrageous that it went well beyond the bound of decency and civility that is expected in our civilized society that it shock the conscious of the reasonable person.

97) No law abiding citizen and teenager would expect that in his effort to obey the law by leaving the area where a fight was in progress that white police officers would simply knee him in the mouth without asking or inquiring if he was involved in the fight and where he did not attempt to assault the police.

98) Plaintiff demands punitive damages to deter like minded individuals from similar conduct.

99) That due to defendants' intentional and reckless conduct of failing to ascertain if Plaintiff was selling fake merchandise, they did not observe Plaintiff break any law, they nevertheless arrested him. That this arrest went beyond was being considered reasonable and tolerable in a civilized society and shocks the conscious of the ordinary citizen. Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains to this day.

AS AND FOR THE SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRIAN RICHARD
FOR ASSAULT AND BATTERY:

100) Plaintiff repeats and reiterates paragraphs 1 through 99 as if fully pled herein and Plaintiff further alleges that;

101) That on or about March 13th, 2012, Plaintiff, **BRIAN RICHARD** (Hereinafter "Plaintiff") was in a park on 216th Street and Barnes Avenue in Bronx County.

102) Plaintiff, a high school student, was simply playing basketball with a group of friends when a fight broke out in the park.

103) Mr. Richard was not involved with this fight in any way which was on the opposite side of the basketball court.

104) In fact, when the fight broke out, Plaintiff and his friends exited the park.

105) Police from Precinct 47th arrived at the park to handle the fight; however, the situation began to spiral out of control.

106) Mr. Richard along with his friends after observing the situation spiral out of control began to leave the park.

107) As he was leaving the park, Mr. Richard was approached by four mainly white police officers and they began without provocation or any explanation to beat him up.

108) One officer without explanation kned Plaintiff in the mouth causing his *jaw to break by using excessive force.*

109) The police who assaulted the Plaintiff without his permission and improperly manhandled him by taking him to the hospital, then took him to the precinct and gave him a bogus disorderly conduct ticket as a cover-up for their criminal assault of breaking the jaw of this young teenage boy.

110) This unpermitted assault upon the Plaintiff was not done without his consent and was completely unjustified.

111) When Plaintiff was released from the precinct, he went straight to the hospital because he was in so much pain from his broken jaw.

112) Upon admission to the hospital, Plaintiff was told he would have to stay overnight at Our Lady of Mercy Hospital on 223rd and Carpenter Avenue in Bronx County.

113) The next morning, Plaintiff was transferred to Montefiore Hospital where he had emergency dental surgery to fix and repair his broken jaw and mandible.

114) The doctors placed two metal plates into Plaintiff's jaw and then stitched him up.

115) On May 25th, 2012, Plaintiff went to Court ready to defend himself against the bogus summons but the Judge dismissed it because it was blatantly defective ticket and by no means made out the claim of Disorderly Conduct.

116) That the Defendants, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the widespread behavior of the members of the NYPD who believe they can assault attack citizens with impunity in the performance of their duties because Police Commissioner Raymond Kelly permits, condones and turns a blind eye to the wide spread abuse of the stop frisk, search and assaultive policies of the NYPD.

117) That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in their exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act willfully, wantonly, maliciously, unlawfully, negligently, recklessly and improperly in their treatment of the Plaintiff.

118) That the Defendant, **THE CITY OF NEW YORK**, was careless and reckless in hiring and retaining as and for its employees, the above named individuals **DEFENDANTS** Police Officer Esther and Police Officers **JOHN/JANE DOES 1-10**, in that the said Defendants lacked the experience department and ability to be employed by the Defendant; in that the Defendant failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employee who lacked the mental capacity and the ability to function as an employee of the aforementioned Defendant; in that Defendant's background and in that they hired and retained as an employee of their police department individuals whose backgrounds contained information (based information and belief) that revealed said Defendants lacked the maturity, sensibility and intelligence to be employed by the Defendant; in that the Defendants knew of the lack of ability, experience, deportment and maturity of said Defendant employee when they hired him to be an employee; and, in that the Defendants their agents, servants and employees were otherwise careless, negligent and reckless.

119) That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the Defendants, their agents, servants, and employees without any negligence on the part of Plaintiff.

120) That the acts of the Defendants, their agents, servants and employees in failing to properly discipline, hire and train their employees, agents and servants presents a clear and present danger to the citizens of the City and State of New York.

121) That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered sick, sore, lame and so remains by the actions of the Defendants, their agents,

servants and employees. Plaintiff recently has all of his criminal dismissed on November 29th 2011.

AS AND FOR THE EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRIAN RICHARD
FOR CIVIL RIGHT ACTION 42 USC §1983:

122) The Plaintiff, **BRIAN RICHARD**, hereby incorporates by reference each and every preceding paragraph 1 through 121 of this complaint as though fully plead and re-alleged in their entirety below.

Venue and Jurisdiction

123) The jurisdiction is founded upon the existence of a Federal Question.

124) That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. § 1983, 1981, 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.

125) That Jurisdiction is founded upon U.S.C § 1331 and § 1343 (3) and (4), this being an action authorized by law to redress the deprivation under the color of statute, ordinance, regulation, custom or usage of a right, privilege, and immunity secured to the Plaintiff by the First, Fourth, and Fourteenth amendments to the Constitution of the United States (42 USC § 1983, 1981, 1985 (3) and arising under the federal constitutional laws and statutes as well as the laws, statutes, and constitution of the State of New York.

126) The amount in controversy exceeds, exclusive of interest and costs are \$75,000, the jurisdictional limits of this and any other court having jurisdiction.

127) The Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned and deprived of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § §1981, 1983 and the Constitution of the State of New York.

128) That on or about March 13th, 2012, Plaintiff, **BRIAN RICHARD** (Hereinafter "Plaintiff") was in a park on 216th Street and Barnes Avenue in Bronx County.

129) Plaintiff, a teenager, was playing basketball with a group of friends. A fight broke out in the park; Mr. Richards was not involved with the fight which was on the opposite side of the basketball court.

130) Police from Precinct 47th arrived at the park to handle the fight; however, the situation began to spiral out of control.

131) Mr. Richard along with his friends after observing the situation began to leave the park.

132) As Plaintiff was leaving the park, he was suddenly approached by four male adult police officers and they began without provocation or any explanation to beat him up and broke his jaw by the use of excessive force.

133) One officer kned him in the mouth causing his jaw to break.

134) At no time did Plaintiff assault the police officer, insult the police or pose a threat them; however, despite Plaintiff being passive, he was without any justification assaulted by the police even though he had nothing to do with the fight that broke out in the park where he was playing basketball.

135) This assault upon the Plaintiff occurred because the Police Commissioner Raymond Kelly allowed and condone police lawlessness where he would turn a blind eye to

police officers who routinely stopped citizens without probable cause, stop, frisk and search them.

136) In this circumstance the policy, custom, of Raymond Kelly allowed these officers the freedom to believe they could assault minority teenagers with impunity.

137) The police then took Plaintiff to the 47th Precinct and gave him a bogus disorderly conduct ticket as a cover for their misconduct and unprofessionalism which they believed was sanctioned by official policies, procedures, condonation of the City of New York and Police Commissioner Raymond Kelly in particular.

138) When Plaintiff was released from the 47th Precinct, he went straight to the hospital.

139) Because of the excessive force the Defendants and all of them employed Mr. Richard, he stayed overnight at Our Lady of Mercy Hospital 223rd and Carpenter Avenue.

140) The next morning, Plaintiff was transferred to Montefiore Hospital where he had surgery to correct his broken jaw.

141) The doctors placed two plates into his jaw and then stitched him up.

142) Thereafter, following the illegal arrest of Plaintiff, he was maliciously prosecuted by having to appear in court and defend against a bogus summons the police knew was defective.

143) On May 25th, 2012 the case dismissed by the judge because the ticket was blatantly defective.

144) Defendant, Police Officers **JOHN/JANE DOES 1-10** accordingly deprived Plaintiff of his civil rights pursuant to 42 U.S.C.A. § 1983. Further, as police officers employed by Defendant **CITY OF NEW YORK**, said Defendant Police Officers were acting under the color of State law when they violated Plaintiff's rights.

145) That the aforementioned misuse of authority and power by Defendants Police Officers Esther and the **JOHN/JANE DOES 1-10** all of conduct was tolerated and Condoned by the Police Commissioner, Raymond Kelly and Mayor Michael Bloomberg was utterly egregious and shocking to the conscience. As a direct result, Plaintiff was caused to undergo the humiliation and indignities resulting from his unlawful confinement against will; and was caused and will continue to undergo and endure severe mental anguish, humiliation and economic hardship as a consequence thereof.

146) Such deprivation were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U.S.C.A. § 1983. And the laws, ordinances and statues of the State of New York to wit:

- a. Defendants' actions in were pursuant to policies and procedures of the NYPD which condoned these assaults upon innocent civilians. The police fully understood that they had the approval of the Mayor of the Police Commissioner to engage in these improper and illegal searches of the store.
- b. The Defendants, their agents, servants and employees, wrongfully used excessive force upon the Plaintiff who was not even in police custody nor attempting to resist arrest when suddenly his jaw was broken
- c. The Defendant falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.
- d. The arrest and imprisonment was not justified by probable cause or other legal privilege; Defendants, their agents, servants and employees, acting under the color of law and under authority of their Office as Police Officers for the city

falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.

- e. The Defendant then maliciously prosecuted Plaintiff by the issuance of the false bogus summons.
- f. That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees
- g. That Defendants, their agents, servants and employees is in their failure to enforce the laws of the state of New York did act with reckless disregard to Plaintiff's rights in that they did not exercise that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants.
- h. That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in the exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the state of New York including Plaintiff.
- i. That the acts of the Defendants, their agents, servants and employees relative in failing to properly discipline, hire and train their employees, agents and servants is a presents a clear and present danger to the citizens of the City and State of New York.

147) As a result of the aforesaid Defendants' deprivation of Plaintiff's civil rights, Plaintiff has been damaged in the sum exceeds the Jurisdictional limits of all lower courts.

AS AND FOR AN NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF BRIAN RICHARD
CIVIL RIGHTS ACTION 42 USC §§ 1985(3):

148) The Plaintiff, **BRIAN RICHARD**, hereby incorporates by reference each and every preceding paragraph 1-147 of this Complaint as though fully plead and re-alleged in their entirety below.

149) That on or about March 13th, 2012, Plaintiff, **BRIANS RICHARDS** (Hereinafter "Plaintiff") was in a park on 216th Street and Barnes Avenue in Bronx County.

150) Plaintiff was playing basketball with a group of friends.

151) A fight broke out in the park.

152) Mr. Richards was not involved with the fight which was on the opposite side of the basketball court. Police from precinct 47th arrived at the park to handle the fight; however, the situation began to spiral out of control.

153) Mr. Richards along with his friends after observing the situation began to leave the park.

154) As he was leaving the park, Mr. Richards was approached by four mainly white police officers and they began without provocation or any explanation to beat him up and broke his jaw.

155) One white male police officer kneed him in the mouth, causing his jaw to break.

156) The police then took him down to the precinct and gave him a bogus disorderly conduct ticket as a cover for their misconduct and unprofessionalism.

157) That the four white police officers acted in concert and unison to deprive the Plaintiff of his civil right by issuing a false and perjurious summons that he acted disorderly.

158) These officers issued the ticket to cover up their crime of attacking and severely beating the Plaintiff so that it would look like they were justified in their actions.

159) However, on May 25th, 2012 this case was dismissed by the judge because the ticket was blatantly defective ticket.

160) The Plaintiff did not commit any illegal act, either before or at the time he was needlessly assaulted by the police and was deprived of his Constitutional rights as a result of this conspiracy by the NYPD arresting officers.

161) That at all times hereinafter mentioned , the Defendants Police Officers, Esther and **JOHN/JANE DOES 1-10** and each of them, separately and in concert conspired for the purpose of depriving, either directly or indirectly, Plaintiff of the equal protection of the laws, or of equal privileges and immunities under the laws in that said Defendants did engage in the illegal conduct hereinbefore described and thus did deprive the Plaintiff of the equal protection of the laws, or of equal privileges and immunities secured to Plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the Laws of the United States. The unlawful and illegal conduct of the Defendants deprived the Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and the State of New York:

- a. The right of the Plaintiff to be secure in their persons and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments of the Constitution of the United States
- b. The right not to be the victim of excessive force.

- c. the right of the Plaintiff to be informed of the nature and cause of the accusation against him so secured to them under the sixth and fourteenth amendments of the Constitution of the United States; and,
- d. the right of the Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the law secured by the Fourteenth Amendment to the Constitution of the United States.

162) That by reason of the aforesaid violations, false arrest, and false imprisonment, and battery and otherwise discriminatory treatment in violation of both the United States and New York State Constitutions, the Defendants conspired together to enter into a nefarious scheme to wrongfully deprive the Plaintiff and compelled him to abandon his rights and privileges as provided to him in the Constitutional rights as set forth in the Constitution of the State of New York, and laws thereto, the Defendants, violated 42 U.S.C. §§ 1981, 1983, 1985 (3) in that the Defendants acted as persons who under color of any statute, ordinance, regulation, custom or usage of the **CITY OF NEW YORK**, subjected or caused to be subjected, a citizen of the United States or other person within the jurisdiction, particularly the Plaintiff thereof to be deprived of his rights, privileges or immunities received by Constitution of the United States of America, and provided them by the Constitution of the State of New York; were subjected to Great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging the Plaintiff.

163) That by reason of the aforesaid violations, to wit the false arrest, false imprisonment caused by the Defendants, who wrongfully deprived the Plaintiff and compel his

abandon his rights and privileges as provided to him in the Constitution of the United States of America, and in the Constitution of the United States of America, and in the Constitution of the State of New York, and laws thereto, the Defendants, acting within the scope of their authority and without any probable cause, caused the Plaintiff great harm because of the aforesaid illegal conduct.

AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF BRIAN RICHARD
FOR ATTORNEY FEES PURSUANT TO 42 USC SECTION 1988:

164) The Plaintiff, **BRIAN RICHARD**, hereby incorporates by reference each and every preceding paragraph 1-63 of this Complaint as though fully plead and re-alleged in their entirety below.

165) That should Plaintiff prevail upon his complaint for false arrest/false imprisonment, assault and battery together with various common law torts and violations of his civil right Plaintiff will seek attorney fees upon his various claims at the time of trial and post judgment.

166) The demand for attorney fees will be made and is herein asserted should Plaintiff be victorious he intends to assert a claim for attorney fees on his federal claims pursuant to 42 USC section 1983, 1981, 1985(3) et seq. together with his common law tort claims.

AS AND FOR THE TENTH CAUSE OF ACTION
ON BEHALF OF BRIAN RICHARD
FOR RACIAL DISCRIMINATION PURSUANT TO 42 USC SECTION 1981:

167) The Plaintiff, **BRIAN RICHARD**, hereby incorporates by reference each and every preceding paragraph 1-666 of this Complaint as though fully plead and re-alleged in their entirety below.

168) That on or about March 13th, 2012, Plaintiff, **BRIAN RICHARD, black teenager** (Hereinafter "Plaintiff") was in a park on 216th Street and Barnes Avenue in Bronx County.

169) Plaintiff was playing basketball with a group of friends.

170) A fight broke out in the park; Mr. Richards was not involved with the fight which was on the opposite side of the basketball court.

171) Predominantly white Police from Precinct 47th arrived at the park to handle the fight; however, the situation began to spiral out of control.

172) Mr. Richards along with his friends after observing the situation began to leave the park.

173) As Plaintiff was leaving the park, Mr. Richard was approached by four mainly white police officers who without provocation or any explanation beat him up and in the process broke his jaw.

174) One adult white male police officer kneed him in the mouth causing his jaw to immediately break.

175) The police then took Plaintiff to the precinct and gave him a bogus disorderly conduct ticket as a cover for their misconduct and illegal activity.

176) When he was released from the precinct, he went straight to the hospital.

177) Mr. Richards stayed overnight at Our Lady of Mercy Hospital 223rd and Carpenter Avenue.

178) The next morning, he was transferred to Montefiore Hospital where he had surgery to correct his broken jaw. The doctors placed two plates into his jaw and then stitched him up.

179) On May 25th, 2012 his case was dismissed by the judge as a blatantly defective ticket.

180) Plaintiff assert that these white police officers do not assault white teenagers when they are called to quell a disturbance and act in the barbaric manner they treated him.

181) Plaintiff was subjected to this treatment solely upon the basis of his race being an a Black male teenager.

182) Plaintiff asserts that this type of conduct does not go on or is tolerated by the Police Commissioner Kelly in affluent neighborhoods.

CONCLUSION

183) **WHEREFORE**, by reason of the aforesaid violations, the Plaintiff requests the following relief:

- a. Compensatory damages in the sum which exceeds the jurisdictional limits of all lower courts.
- b. Punitive damages in the sum which exceeds the jurisdictional limits of all lower courts.
- c. An award of reasonable attorney's feed, costs and disbursements;
- d. Plaintiff requests a trial by jury of all issues involved in this complaint;
- e. Such other and further relief as this Court may deem just, meet and proper under the circumstances.

Dated: December 6, 2012
New York, NY 10007



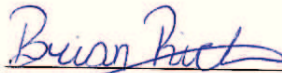
Ronald Paul Hart, Esq,
225 Broadway, Suite 2515
New York, NY 10007
Tel: (212) 766-1443

VERIFICATION

STATE OF NEW YORK)
) ss
COUNTY OF BRONX)

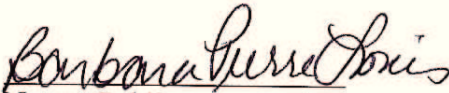
BRIAN RICHARDS, being first duly sworn hereby deposes and says that:

1. I am the PLAINTIFF in this action.
2. I am over eighteen years of age and reside in Bronx County, in the City of New York.
3. I verify that the statements made to my attorney are true to the best of my knowledge and belief.
4. All allegations made which are based upon information and belief are made after consultation with my attorney and on the bases of the information available to me at this time.
5. I further verify that I have read the forgoing Summons and Complaint that I know the contents thereof, the same is true to my knowledge, except to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true.



BRIAN RICHARDS

Sworn to before me this
28th day of April 2012



Notary Public

BARBARA PIERRE-LOUIS
NOTARY PUBLIC-STATE OF NEW YORK
No. 02PI6189312
Qualified in Kings County
My Commission Expires June 23, 2012

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

BRIAN RICHARD

Plaintiff,

Index No:

-against-

Summons and Complaint

**THE CITY OF NEW YORK, POLICE COMMISSIONER
RAYMOND KELLY, POLICE OFFICER HARRY ORTIZ
SHIELD No.: 10306, INDIVIDUALLY AND IN CAPACITY
AS A NEW YORK CITY POLICE OFFICER
AND POLICE OFFICER JOHN AND/OR
JANE DOE NUMBERS 1-10**

Defendants.

RONALD PAUL HART, ESQ.

Attorney(s) for the PLAINTIFF

225 Broadway Suite 2515

New York, New York 10007

Tel. (212)766-1443

To: ALL COUNSEL
Attorney(s) for
THE DEFENDANTS:

Service of a copy of the within SUMMONS AND COMPLAINT

Attorney(s) for THE PLAINTIFFS

Counselor(s): Please Take notice

NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered order in the office of the clerk of the within named court on

NOTICE OF SETTLEMENT

that an order for of which the within is a true copy will be presented for settlement to the
HON. one of the justices of the within named Court at the within is a (certified) true copy of
a duly entered